



CHAPTER 9.

An Act to assist the government of Malta to meet their liabilities for war damage and other expenses, and for purposes connected therewith. [18th February 1947.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) A sum of twenty million pounds shall be charged on and issued out of the Consolidated Fund of the United Kingdom or the growing produce thereof towards the expenses incurred or to be incurred by the government of the Island of Malta and its dependencies (in this Act referred to as "Malta")—

Grant of
£20,000,000
out of
Consolidated
Fund to
Malta.

- (a) in making good war damage ;
- (b) in making payments in respect of war damage ;
- (c) in carrying out other works incidental to the making good of war damage ;
- (d) in carrying out works in connection with general reconstruction and planning.

(2) In this Act the expressions "making good" and "war damage" have the meaning assigned to them by the enactments in force in Malta relating to war damage, whether enacted before or after the passing of this Act.

(3) Expenses incurred by the government of Malta in making good war damage to property owned by that government or otherwise owned by the Crown (other than property owned by the naval, military or air force authority), or in carrying out works incidental to the making good of that war damage, shall, notwithstanding anything in any such enactment as aforesaid be included among the expenses to which subsection (1) of this section refers.

(4) The grant in aid amounting to ten million pounds, made in the year nineteen hundred and forty-three for the restoration of war damage and other post-war expenditure in Malta, may, notwithstanding any instrument relating to that grant, be applied for the same purposes and in the same manner as the said sum of twenty million pounds; and no payment shall be made under this Act until the said grant, and the produce thereof, have been expended.

Accounts,
estimates
and pay-
ments.

2.—(1) The government of Malta shall submit annually to a Secretary of State accounts and estimates of the expenses incurred or to be incurred by them in each financial year, being expenses towards which the said sum of twenty million pounds is payable under this Act; and no payment shall be made under this Act except in respect of the expenses to which those accounts and estimates, or any estimates submitted by the said government revising or supplementing those estimates, relate.

(2) The government of Malta shall submit annually to the Secretary of State accounts showing the manner in which any sums received by them under this Act have been expended; and the Secretary of State shall lay those accounts before Parliament.

(3) All accounts and estimates required or authorised by this section to be submitted to the Secretary of State shall be in such form, and all such accounts shall be subject to such audit, as the Secretary of State may with the concurrence of the Treasury require.

(4) Subject to the provisions of this Act, the sums payable under this Act shall be paid at such times and in accordance with such arrangements as the Secretary of State may, after consultation with the said government and with the concurrence of the Treasury, determine.

Benefits
under the
Colonial
Development
and Welfare
Acts.

3 & 4 Geo. 6.
c. 40.
8 & 9 Geo. 6.
c. 20.

3. Section one of the Colonial Development and Welfare Act, 1940, which, as amended by the Colonial Development and Welfare Act, 1945, authorises the Secretary of State to make payments for the purpose of the development of a colony not possessing responsible government, shall apply to Malta notwithstanding its possession at any time of responsible government.

Short title.

4. This Act may be cited as the Malta (Reconstruction) Act, 1947.

Printed by Sir NORMAN GIBB SCORGIE, C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 13a Castle Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 1d. net

(P. 5562)